

24TRCV03501 24TRCV03501

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-09-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CM%2C09%2F09%2F2026

Source SHA-256: 5e1f751779d9b541de7e6860e3a0dee2e728512b153040e174c2bb626e599570

Case Number: 24TRCV03501 Hearing Date: September 9, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday, September 9, 2026

Calendar No.

PROCEEDINGS

Preston

Lebaron Curtis, et al. v. City of Inglewood, et al.

24TRCV03501

1. Hollywood Park Management Company, LLC's Demurrer to
Complaint

TENTATIVE RULING

Hollywood Park Management Company, LLC's Demurrer to
Complaint is sustained with 20 days leave to amend.

Background

Plaintiffs' Complaint was filed on October 21, 2024.

Plaintiffs allege the following facts. Plaintiffs were attending a Chargers' game at SoFi stadium when they were approached by security guards regarding ticket seat assignments. The security guards then assaulted and battered Plaintiffs. Plaintiffs allege the following causes of action: 1. Battery; 2. Negligence; 3. Negligent Hiring, Training, and Supervision; 4. Intentional Infliction of Emotional Distress.

On May 15, 2026, Plaintiffs filed a DOE amendment naming DOE 1 as Hollywood Park Management Company, LLC.

Meet and Confer

Defendant set forth a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl., Andrea J. Lee Sandoval.)

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether

the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant demurs to the fourth cause of action of the Complaint pursuant to CCP § 430.10(e) and (f) on the grounds that the cause of action fails to state sufficient facts and is uncertain.

Fourth Cause of
Action for IIED

Defendant's demurrer to the fifth cause of action is sustained with 20 days leave to amend. Plaintiff fails to state sufficient facts to state a cause of action.

"A cause of action for IIED requires proof of: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress." Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007.

Plaintiffs' Complaint is uncertain. On May 15, 2026, Plaintiffs filed a DOE amendment naming DOE 1 as Hollywood Park Management Company, LLC. DOE 1 is described in the following manner: "Defendants DOE 1 to 5 were and at all times mentioned herein were residents of the State of California and County of Los Angeles. At all times relevant to the acts and omissions herein alleged, Defendants DOE 1 to 5, were employees, and acted in the course and scope of their employment with Defendants CITY OF INGLEWOOD, a public entity; COUNTY OF LOS ANGELES, a public entity; STATE OF CALIFORNIA, a public entity; CALIFORNIA DEPARTMENT OF TRANSPORTATION, a public entity; SOFI STADIUM, an unknown entity; PINCAY RE, LLC, a Delaware corporation; BLUE AND GOLD TENANT LLC, a Delaware corporation; STADCO LA, LLC, a Delaware corporation; and Does 6 to 50,

inclusive.” (Complaint, ¶ 4 (emphasis added)).

It is uncertain how a limited liability corporation can be considered an “employee” of another entity. In addition, it is uncertain how a limited liability corporation, itself, can commit assault and battery, which is the underlying basis for the IIED cause of action.

Thus, the demurrer to the fourth cause of action is sustained with 20 days leave to amend.

Defendant is ordered to give notice of this ruling.